

INTERNATIONAL DISPUTE SETTLEMENT: A BRIEF NOTE

Interaction between states, international institutions, and individuals inevitably generates disputes which must be resolved through specialized mechanisms. While disputes are often resolved through use of force, this is typically a final resort that follows the failure of pacific resolution. International law has created a number of mechanisms for the peaceful resolution of disputes between states. These include the following:

1. Conciliation, Negotiation and Arbitration

Under international law, states involved in any dispute that potentially or actually threatens international peace and security have a responsibility to resolve the same peacefully.¹ More specifically, they have a duty to resolve such disputes through² negotiation, enquiry, mediation, conciliation, arbitration, judicial settlement, resort to regional agencies or arrangements, or other peaceful means of their own choice³ This principle was affirmed in the 1982 United Nations General Assembly resolution (37/10) on the peaceful settlement of international disputes (also known as the⁴ 0 D Q O D 5 H R O W L R Q f a i l W d W H d V i s Z K f e s K peacefully are obligated to refer the matter to the United Nations Security Council (UNSC).⁵

2. The United Nations Security Council

Where disputes between states involve threats to international peace and security (i.e. which actually or potentially involve armed force), primary responsibility for their resolution falls to the United Nations Security Council (UNSC) under chapter six of the UN Charter. While the UNSC may take up the dispute of its own initiative,⁶ the matter may also be brought to its attention by any member of the United Nations⁷ or a state which is not a UN member state but is involved in the dispute.⁸

¹ Article 2(3) of the UN Charter ² Article 33(1)

of the UN Charter ³ Article 37 of the UN Charter

⁴ Article 34 of the UN Charter

⁵ Article 35(1) of the
UN Charter ⁶ Article
35(2) of the UN Charter

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